OPEN SOCIETY
JUSTICE INITIATIVE

LITIGATION

# French Criminal Investigation of Chemical Weapons Attacks In Syria

COURT
Domestic Courts

COUNTRY
France

STATUS
Active

CASE MANAGER

On March 1, 2021, the Open Society Justice Initiative joined Syrian survivors of chemical weapons attacks, the Syrian Center for Media and Freedom of Expression (SCM), and Syrian Archive in seeking a French criminal investigation for the August 2013 chemical weapons attacks on the city of Douma and on Eastern Ghouta. The criminal complaint was filed with a civil party application before investigating judges.

The complaint alleges that chemical weapons attacks constitutes war crimes and crimes against humanity. The filing and its accompanying dossier include new evidence from survivors and investigative leads, analyze chains of command that conducted the attacks, and identify a number of Syrian officials that the organizations who spearheaded the complaint allege are responsible for the attacks.

The groups call on investigating judges to open a formal investigation, including mandating a unit specialized in investigating crimes against humanity, genocides and war crimes to probe these crimes, and to form a joint investigation with Germany and Sweden, where the NGOs have filed related complaints. The complaint is part of the legal campaign seeking the criminal investigation of Syrian government officials responsible for the use of chemical weapons and their eventual prosecution.

## Background

The chemical weapons attack on Eastern Ghouta on August 21, 2013 is the deadliest committed during the Syrian conflict, and widely condemned by the international community. Sarin, the deadly nerve agent that was used in this attack, killed and caused lasting disabilities among a civilian population that included women and children. First responders and medical personnel were also harmed as they tried to rescue victims. Attacks on nearby medical facilities were carried out to coincide with the chemical attacks, which severely limited the emergency medical response.

However, it was not the first time that the Syrian government used chemical weapons against its own population. The use of chemical weapons was first documented on October 13, 2012, in the village of Kafr Takharim, in the Idlib Governorate, and the frequency and scale of chemical weapons attacks by the Syrian government intensified starting in March 2013. The chemical attacks on Douma and the neighboring town of Adra on August 5, 2013, constituted the largest chemical weapons attack to date, and foreshadowed the devastation that would follow on Eastern Ghouta two weeks later.

The Syrian government has used chemical weapons during the conflict as part of a pattern of deliberate and widespread attacks against civilians in areas held by opposition forces. Douma and Eastern Ghouta were under control of the opposition at the time of the chemical attacks.

Sarin and other chemicals have been developed and produced as part of the Syrian government's highly secretive chemical weapons program. At the heart of Syria's chemical weapons program lies the Scientific Studies and Research Center (SSRC), a Syrian government-affiliated entity responsible for the development and production of conventional and non-conventional weapons and delivery systems.

Following the chemical attacks on Eastern Ghouta on August 21, 2013, the Organization for the Prohibition of Chemical Weapons (OPCW) adopted procedures for the destruction of Syria's chemical weapons program. The decision was endorsed by the United Nations Security Council in Resolution 2118 in 2013. All chemical weapons materials declared by Syria were destroyed by mid-August 2014. Yet, later chemical attack illustrate that the Syrian government continued its chemical weapons program past the destruction of its stockpiles.

Some states, including France, have universal jurisdictions laws, which provide national prosecutors and courts with the authority to investigate and prosecute international crimes committed on foreign territory by foreign nationals. For more, see the briefing paper produced by the Justice Initiative and TRIAL International: "Universal Jurisdiction Law and Practice in France".

## Douma Chemical Weapons Attacks

On August 5, 2013, the Syrian government targeted two neighboring towns in the eastern suburbs of the Syrian capital. Chemical weapons first hit the industrial town of Adra at approximately 1:00 AM, and then chemical weapons hit the larger city of Douma at approximately 5:00 AM.

Civilians in Douma sought shelter on rooftops of buildings to avoid inhaling the toxic chemicals, which are heavier than air and tend to remain closer to the ground. Testimonies from survivors and doctors recall patients struggling to breathe and suffocating because of chemical exposure. Hospitals in Douma were rapidly overwhelmed with casualties. The chemical weapons attack on Douma injured over 400 individuals, including many woman and children.

## Al-Ghouta Chemical Weapons Attacks

In the early hours of August 21, 2013, chemical weapons attacks targeted two suburbs of Damascus. Several chemical rockets loaded with sarin struck Eastern Ghouta and, hours later, Western Ghouta. When families scrambled in the middle of the night to reach their rooftops to avoid exposure to sarin, a highly lethal nerve agent, they were hit by mortar fire and other shelling by Syrian government forces. This forced them to flee the rooftops to the ground below, killing many children, women, and men. The chemical attacks resulted in more than a thousand deaths and thousands of serious injuries.

The Justice Initiative and our Syrian partners have investigated the Syrian government chains of command responsible for the chemical attacks on Eastern Ghouta, uncovering evidence showing the roles of senior officers within. These government branches include the SSRC's Branch 450, which supports the planning and execution of Syria's chemical weapons attack; the Republican Guard; the Syrian Missile and Artillery Directorate; the General Command of the Army and Armed Forces; the 4th Armored Division; the 155th Missile Brigade; the 104th and 105th Brigades of the Presidential Guard. We have also submitted evidence concerning the roles of Maher Al-Assad, brother of President Bashar al-Assad, who gave personal orders for the attacks, and President al-Assad, who held the highest responsibility in authorizing the attack.

## Open Society Justice Initiative Involvement

Since 2017, the Justice Initiative has partnered with Syrian Archive and the Syrian Center for Media and Freedom of Expression (SCM) to investigate chemical weapons attacks and to identify the perpetrators and chains of command responsible. Our work on chemical weapons accountability has been supported by investigators at ArcticWind Solutions, the Human Rights Center Investigations Lab at UC Berkeley School of Law, and C4ADS.

The Justice Initiative and its partners interviewed over 90 witnesses to build its dossier of evidence. This includes numerous former government insiders, who are willing to provide testimony to judicial authorities. Additionally, the Justice Initiative represents more than more than twenty survivors of chemical weapons attacks who seek to give evidence to the French judicial authorities.

The complaint in France is part of a legal campaign by survivors and civil society organizations. The French complaint follows the filing by the Justice Initiative, Syrian Archive, and SCM in October 2020 with the Office of the German Federal Public Prosecutor. The complaint in Germany related to the chemical weapons attacks on Al-Ghouta in 2013 and on Khan Shaykhoun in 2017. Victims and the Justice Initiative, SCM, Syrian Archive, and Civil Rights Defenders, also filed criminal complaints in Sweden in April 2021 concerning the attacks on Al-Ghouta in 2013 and on Khan Shaykhoun in 2017.

## All Documents

JULY 15, 2025

Summary: July 4 Hearing Before the Court de Cassation (English)

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Summary: July 4 Hearing Before the Court de Cassation (French)

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Oral Arguments: July 4 Hearing Before the Court de Cassation (French)

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Q&A: July 4 Hearing Before the Court de Cassation (English)

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### German Criminal Investigation into Chemical Weapons Attacks in Syria

The Justice Initiative has joined with Syrian groups in filing the first criminal complaint against Syrian government officials for the 2013 and 2017 chemical weapons attacks in Ghouta and Khan Shaykhun. The complaint was filed before the Office of the German Federal Prosecutor.

LITIGATION

### Swedish Criminal Investigation of Chemical Weapons Attacks In Syria

On April 19, 2021, the Open Society Justice Initiative joined survivors of chemical weapons attacks in Syria, the Syrian Center for Media and Freedom of Expression (SCM), Syrian Archive, and Civil Rights Defenders in filing a criminal complaint with Swedish War Crimes Commission within the Swedish Police Authority.

## RELATED WORK

PRESS RELEASE

### Bashar al-Assad Can Be Prosecuted in France, but the Court Missed an Opportunity to Make History

The decision stands in stark contrast to the post-World War II rejection of impunity for heads of state, and it undermines decades of progress in holding leaders accountable for mass atrocities.

JULY 28, 2025

PRESS RELEASE

### Statement by Civil Society Organizations on the Upcoming French Cour de Cassation Hearing Regarding Immunities for State Officials

France's Court of Cassation will hold a landmark hearing to review the legality of the arrest warrant against Bashar al-Assad for deadly chemical attacks in Syria. This is a pivotal moment in the fight against impunity.

JULY 03, 2025

PRESS RELEASE

## French Court of Appeal Validates Historic Arrest Warrant for Syrian President Bashar al-Assad: A Legal Milestone and Important Victory for Survivors

The Paris Court of Appeal upheld arrest warrants for Syrian President Bashar al-Assad, his brother Maher al-Assad, and two senior military officials for their alleged roles in the 2013 Ghouta and Douma chemical attacks.

JUNE 26, 2024


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